Out. No. 20251226/1

To the Investigating Judge of the Shevchenkivskyi District Court of the City of Kyiv
03680, Kyiv, 31-A Dehtiarivska St.

Defense Counsel: **Attorney Vladyslav Serhiyovych Miftakhutdinov**
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Tel.: +380 97 327 02 69
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in the interests of: **Oleksandr Vyacheslavovych Boguslayev**

Person whose inactivity is appealed: **Prosecutor of the Prosecutor General's Office Oleksandr Safaryan**

Criminal Proceeding
No. 22017000000000272

COMPLAINT
against inactivity of the prosecutor regarding failure to adopt a decision to change investigative jurisdiction
(pursuant to paragraph 1 of Part 1 of Article 303 of the CPC of Ukraine)

I, attorney Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; authority – Annexes 1, 2).

In the interests of the Client, I file this Complaint against the inactivity of the prosecutor of the Prosecutor General's Office Oleksandr Safaryan, consisting in failure to adopt a decision on determining another investigative jurisdiction of Criminal Proceeding No. 22017000000000272 in the manner and within the time limit provided for by paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine (failure to perform a procedural action required to be performed within the time limit established by the CPC of Ukraine).

1. Regarding factual circumstances of the case.

Investigators of the Main Investigation Directorate of the Security Service of Ukraine (hereinafter – MID SSU) conduct pre-trial investigation of Criminal Proceeding No. 22017000000000272 dated 06.07.2017 (hereinafter – Criminal Proceeding, Annex 3).

Procedural guidance in the Criminal Proceeding is carried out by prosecutors of the Prosecutor General's Office.

The senior prosecutor of the group of prosecutors is prosecutor Oleksandr Safaryan (Annex 4).

Pre-trial investigation of the Criminal Proceeding is conducted regarding V.O. Boguslayev and O.V. Boguslayev on the grounds of commission of crimes, in particular, provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25.05.2006–29.08.2019.

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

Considering that (1) the Criminal Proceeding is conducted on the fact of commission of criminal offenses provided for, in particular, by Part 5 of Article 191 and Part 3 of Article 209 of the CC of Ukraine and (2) the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – pre-trial investigation of the criminal proceeding belongs to the exclusive investigative jurisdiction of NABU.

Further investigation of Criminal Proceeding No. 22017000000000272 by investigators of the MID SSU is unlawful and must be transferred to NABU in view of the following.

2. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding by NABU.

As has already been stated, pre-trial investigation of the Criminal Proceeding is carried out by investigators of the MID SSU.

At the same time, the conduct of pre-trial investigation of the Criminal Proceeding by investigators of the MID SSU violates the requirements of paragraph 1 of Part 5 of Article 216, Part 1 of Article 218, Part 5 of Article 36 of the CPC of Ukraine in view of the following.

On 28.04.2025, V.O. Boguslayev was notified of suspicion of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

On 25.04.2025, in the Criminal Proceeding, a Suspicion was drawn up regarding O.V. Boguslayev concerning a crime provided for by Part 3 of Article 209 of the CC.

According to the investigation's version:

(1) V.O. Boguslayev during 1994–2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued price as a result of failure to index the value of property during the privatization of the SE "Motor Sich".

(2) Subsequently, V.O. Boguslayev and O.V. Boguslayev allegedly legalized criminal proceeds, namely sold shares of JSC "Motor Sich" (which were acquired by criminal means) to representatives of the PRC through controlled non-resident companies.

(3) Subsequently, the received funds were transferred to the personal accounts of O.V. Boguslayev.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25.05.2006–29.08.2019 (Annexes 5–8).

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

This, in turn, indicates the exclusive investigative jurisdiction of the Criminal Proceeding by NABU.

Thus, pursuant to paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for, in particular, by **Articles 191, 209 (regarding employees of legal entities of public law) of the CC of Ukraine, if the criminal offense is committed, in particular, by a People's Deputy of Ukraine.**

We note that the CPC of Ukraine **does not establish a requirement** that the special status of the alleged subject of the crime extend to the entire period of investigation of the proceeding (in particular, that at the moment of notice of suspicion the person continue to hold such status).

That is, during the period of investigation, the person may not possess the corresponding status. For NABU's investigative jurisdiction, what is decisive is that the person possesses such special status at the time of committing the alleged criminal offense.

In addition, the CPC of Ukraine does not establish that the alleged commission of the crime must be connected with the person having such special status (using it).

Therefore, **the Criminal Proceeding is subject to the investigative jurisdiction of NABU, since the criminal offense incriminated against V.O. Boguslayev – Part 5 of Article 191 of the CC, was allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine.**

In addition, such investigative jurisdiction of NABU in this case is exclusive (i.e. such that precludes investigation of the Criminal Proceeding by other bodies) in view of the following:

(1) pursuant to Part 5 of Article 36 of the CPC of Ukraine, **it is prohibited to entrust the conduct of pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of NABU to another pre-trial investigation body**, except in cases where objective circumstances exist that make the functioning of NABU or its conduct of pre-trial investigation impossible under martial law.

Such circumstance is absent in the Criminal Proceeding.

(2) Part 5 of Article 36 of the CPC of Ukraine establishes that **it is prohibited for pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine to be conducted by other pre-trial investigation bodies, except for NABU and the central apparatus of the SBI in accordance with their investigative jurisdiction.**

At the same time, it should be noted that pursuant to paragraph 13 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives, for the purpose of preventing, detecting, terminating and solving criminal offenses assigned by this Article to its investigative jurisdiction, upon a decision of the Director of NABU and with the agreement of the SAP prosecutor, may also investigate criminal offenses assigned to the investigative jurisdiction of investigators of other bodies.

Thus, the CPC of Ukraine expressly provides that the investigation within a criminal proceeding also of other criminal offenses that do not fall under the investigative jurisdiction of NABU does not exclude the exclusive investigative jurisdiction of the criminal proceeding to NABU.

Considering the stated, **the Criminal Proceeding falls under the exclusive investigative jurisdiction of NABU detectives.**

Thus, Part 5 of Article 36, Parts 2, 5 of Article 216 of the CPC of Ukraine establish the absence of authority in the bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, according to Part 2 of Article 19 of the Constitution of Ukraine, state power bodies and their officials are obligated to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, **NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.**

3. Regarding the prosecutor's duty to determine another investigative jurisdiction of the criminal proceeding.

Part 2 of Article 218 of the CPC of Ukraine regulates the procedure for actions of an investigator/prosecutor upon discovering that a criminal proceeding does not fall within the investigative jurisdiction of the investigation body.

In particular, the specified provision **establishes the duty of the prosecution to respond properly** to identified facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, according to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, **within ten days from the day such circumstances are established, is obligated to adopt a ruling on determining investigative jurisdiction.**

Therefore, the specified provision establishes:

(1) the prosecutor's duty to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the time limit within which the prosecutor must make a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified provision establishes precisely the duty of the prosecutor, in case of violation of investigative jurisdiction, to take actions aimed at determining proper investigative jurisdiction.

Within the Criminal Proceeding, the prosecutor is obligated to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine another investigative jurisdiction of the Criminal Proceeding within 10 days, as:

(1) The Criminal Proceeding constitutes the exclusive investigative jurisdiction of NABU (in connection with the circumstances stated in Section 2 of the Motion);

(2) The Criminal Proceeding cannot be subject to the investigative jurisdiction of the MID SSU.

On 07.02.2025, prosecutor Oleksandr Safaryan was included in the group of prosecutors and designated senior prosecutor of the group of prosecutors.

The circumstances necessitating the change of investigative jurisdiction of the Proceeding arose on 25.04.2025 – at the moment of notice of suspicion under Part 5 of Article 191 of the CC to a special subject – V.O. Boguslayev.

Therefore, it was from this date that such 10-day period for determining the investigative jurisdiction of the Criminal Proceeding to NABU began.

Moreover, on 09.12.2025, the defense filed a Motion to Oleksandr Safaryan on determining the investigative jurisdiction of the criminal proceeding to another pre-trial investigation body (Annex 9).

On 23.12.2025, I received the Prosecutor's Ruling dated 12.12.2025, by which the prosecutor refused to satisfy the specified Motion. At the same time, the prosecutor failed to properly take into account the exclusive grounds that clearly and plainly indicate that the Criminal Proceeding is not within the investigative jurisdiction of the MID SSU (Annex 10).

That is, the prosecutor failed to perform his duty and did not take any actions to eliminate the unlawfulness of the investigative jurisdiction of the Criminal Proceeding and did not transfer the conduct of its pre-trial investigation to NABU. By doing so, he committed inactivity and continues to commit it.

Thus, prosecutor Oleksandr Safaryan was obligated to determine the investigative jurisdiction of the Criminal Proceeding to NABU and issue a corresponding ruling.

4. Regarding the right of appeal.

Pursuant to paragraph 1 of Part 1 of Article 303 of the CPC of Ukraine, in pre-trial proceedings, inactivity of the prosecutor consisting in failure to perform procedural actions

that he is obligated to perform within the time limit established by the CPC of Ukraine may be appealed by the defense.

Considering that under paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor has:

(1) The duty and authority to determine another investigative jurisdiction.

(2) The duty to adopt a ruling on determining another investigative jurisdiction within 10 days from the day it is established that the criminal proceeding falls under the investigative jurisdiction of another pre-trial investigation body.

Pursuant to Part 1 of Article 304 of the CPC of Ukraine, complaints against inactivity of the prosecutor may be filed by a person within ten days from the moment the inactivity was committed.

On 07.02.2025, prosecutor Oleksandr Safaryan was appointed senior prosecutor of the group of prosecutors in the Criminal Proceeding.

On 25.04.2025, there was a notice of suspicion under Part 5 of Article 191 of the CC to a special subject – V.O. Boguslayev.

That is, starting from 25.04.2025, prosecutor Oleksandr Safaryan was obligated as procedural supervisor to change the investigative jurisdiction of the Criminal Proceeding.

At the same time, he did not perform the specified actions and continues not to fulfill the duty imposed on him by the CPC of Ukraine. Thereby, he commits continuing inactivity, which has a beginning (25.04.2025) and continues until such time as the prosecutor takes actions to change the pre-trial investigation body of the Criminal Proceeding to NABU.

Therefore, this complaint has been filed within the time limit.

Considering the stated and guided by Articles 9, 42, 216, 218, 36, 303–305 of the CPC of Ukraine, –

REQUEST:

1. To satisfy the complaint of the defense counsel of O.V. Boguslayev – attorney V.S. Miftakhutdinov, against the inactivity of the prosecutor of the Prosecutor General's Office Oleksandr Safaryan, consisting in failure to adopt a decision on determining another investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 06.07.2017.
2. To obligate the prosecutor of the Prosecutor General's Office Oleksandr Safaryan to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 06.07.2017 to the National Anti-Corruption Bureau of Ukraine.
3. To notify about the date, time and place of consideration of this complaint at the address: Entrance 13, BC "Bashta 5", 22 Rybalska St., Kyiv, 01011, and by telephone number: +38097 327 02 69.

Annexes:

1. Certified copy of the Certificate of the right to practice law.
2. Certified copy of the Power of Attorney / Order for provision of legal assistance.
3. Certified copy of the Extract from the ERDR regarding Criminal Proceeding No. 22017000000000272.

4. Certified copy of the Resolution of the First Deputy Prosecutor General on designating the group of prosecutors dated 07.02.2025.
5. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 25.05.2006 to 23.11.2007 (V convocation).
6. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 23.11.2007 to 12.12.2012 (VI convocation).
7. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 12.12.2012 to 27.11.2014 (VII convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 27.11.2014 to 29.08.2019 (VIII convocation).
9. Certified copy of the Motion on determination of investigative jurisdiction dated 09.12.2025.
10. Certified copy of the Ruling on refusal to satisfy the Motion on determination of investigative jurisdiction dated 12.12.2025.

26.12.2025

Defense Counsel
V.S. MIFTAKHUTDINOV

NATIONAL ASSOCIATION
OF ADVOCATES OF UKRAINE

CERTIFICATE

ON THE RIGHT TO PRACTICE LAW



Series VL No. 1340

Pursuant to the Law of Ukraine **"On the Bar and Practice of Law"**

Cit. **Miftakhtdinov Vladyslav Serhiyovych**
(surname, first name, patronymic)

has the right to practice law

Grounds: decision **of the Bar Council of Volyn Region**
(name of the regional Bar Council)

dated **27.08.2021** No. **2/69-8**

Chairman **of the Bar Council of Volyn Region**
(name of the regional Bar Council)

H.A. Rudenko

" 27 " August 2021

L.S. 691818

SERIES AS **No. 1140981**

(link to advocate profile in ERAU)

NATIONAL ASSOCIATION OF ADVOCATES OF UKRAINE

ORDER

ON THE PROVISION OF LEGAL ASSISTANCE

Boguslayev Oleksandr Vyacheslavovych

(surname, first name, patronymic or name of the person provided with legal assistance)

on the grounds of:

legal assistance agreement / assignment of the body (institution) authorized by law to provide free legal assistance **No. w/n** dated **" 09 " May 2025**

in **Shevchenkivskyi District Court of the City of Kyiv**

(name of the body in which legal assistance is provided)

Advocate

Miftakhutdinov Vladyslav Serhiyovych

(surname, first name, patronymic of the advocate providing legal assistance)

Certificate of the right to practice law No. 1340 dated August 27, 2021
issued by the Bar Council of Volyn Region on the basis of
decision No. 2/69-8 dated August 27, 2021
Advocate's ID card of Ukraine No. 1340 issued on August 27, 2021 by the Bar Council of Volyn Region
Issued by the bar association:
"Law Association "VB PARTNERS"

(full name of the bar association issuing the order)

01011, Kyiv, city of Kyiv, Pecherskyi district, 22 Rybalska St., Entrance 13

(workplace address of the advocate if it differs from the registered office address of the bar association issuing the order)

By the legal assistance agreement
the advocate's powers are not limited.

Advocate: _____
(Advocate's signature)

" 26 " May 2025

Head of the bar association: _____
(Head's signature)



EXTRACT
FROM THE UNIFIED REGISTER OF PRE-TRIAL INVESTIGATIONS

Criminal Proceeding Number: 22017000000000272

Date of registration of proceeding (severance of materials of pre-trial investigation): 06.07.2017 20:57:57

№1

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	06.07.2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	Deposit Guarantee Fund (Code 21708016)
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	06.07.2017 20:50:20
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 14 Part 1; Art. 113 (in force until 07.03.2022)
Brief statement of circumstances that may indicate commission of criminal offense: During the period from 2016 to the present time, unidentified individuals from among current and former officials and ultimate beneficial owners of Public Joint-Stock Company "Motor Sich" (USREOU code 14307794), acting by prior conspiracy among themselves, with the purpose of weakening the state through destruction of the specified enterprise as an object of significant economic and defense importance, committed a series of transactions for the purchase and sale of a controlling stake in the Factory to non-resident companies "Business House Helena, AG" (Panama), "Enfields Trade & Capital Corp." (Panama), "Waldo Trade Ltd." (Virgin Islands), "Granum Corporation" (Panama), "Skyrizon Aircraft Holdings Limited" (Virgin Islands), "Likatron Enterprises Limited" (Cyprus), "Ventalina Management Ltd" (Nevis), which have no intention of conducting business activities by the specified enterprise, but plan its liquidation and removal of assets, including production capacities of the only factory in Ukraine for the production of civil and military turbojet engines for aviation equipment, outside of Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№2

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	notifications of enterprises, institutions, organizations and officials
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017 13:58:00
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 212 Part 3
Brief statement of circumstances that may indicate commission of criminal offense:	

It has been established that officials of JSC "MOTOR SICH" (USREOU code 14307794), acting intentionally, by prior conspiracy with unidentified persons, in violation of the provisions of tax legislation, as a result of minimizing the value of privatized property, evade the payment of taxes, which leads to the non-receipt by the State Budget of Ukraine of funds in particularly large amounts.
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№3

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	notifications of enterprises, institutions, organizations and officials
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017 14:03:01
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 209 Part 2 (in force until 28.04.2020)
Brief statement of circumstances that may indicate commission of criminal offense: It has been established that officials of JSC "MOTOR SICH" (USREOU code 14307794), acting intentionally, by prior conspiracy with unidentified persons, acquired property obtained as a result of committing a socially dangerous, unlawful act that preceded the legalization (laundering) of proceeds, when conducting operations for privatization of property of State Enterprise "MOTOR SICH", by violating the established norms of the Law of Ukraine "On Privatization of State Property" dated 04.03.1992.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№4

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.07.2019
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquiry officer (authorized person of another department) of criminal offense, including during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.07.2019 21:40:44
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 1
Brief statement of circumstances that may indicate commission of criminal offense:	

During the period from 2015 to the present time, unidentified officials and beneficial owners of PJSC "Motor Sich" (Ukraine, USREOU 14307794), from among citizens of Ukraine, acting intentionally, provide assistance to the Russian Federation in conducting subversive activities against Ukraine, through manufacturing, repair, maintenance and extension of the service life of aviation gas turbine engines for airplanes and helicopters and/or their parts and components, in the interests of the Russian army, the state company of the Russian Federation "Flight Detachment Russia", the Federal Security Service of the Russian Federation, JSC "218 Aviation Repair Plant" (Russian Federation). In order to ensure the aforementioned unlawful activity, in particular the export from Ukraine to the Russian Federation of goods of military purpose and dual-use for the purpose of their military end-use, the Russian Federation involved JSC "Borisphen" (Russian Federation), "Helicopter complexes and multifunctional systems" (Russian Federation, abbreviated name "VKMS"), "Vladimir Klimov – Motor Sich" (Russian Federation, abbreviated name: "VK-MS"), "Losiny Ostrov" (Russian Federation), "Aviaremont-MS" (Russian Federation), "LLC "Aviatech" (Russian Federation), "Donetsk branch of "LLC "Aviatech" (DPR), "D.O.O. Inzeniring BN" (Bosnia and Herzegovina), "Double Power FZE" (United Arab Emirates).
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№5

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.08.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by prosecutor of criminal offense
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.08.2020 16:23:55
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 3; Art. 190 Part 4 (in force until 11.08.2023)
Brief statement of circumstances that may indicate commission of criminal offense: On 29.01.2016 between company Skyrizon Aircraft Holdings Limited and JSC "Motor Sich" loan agreement No. 3104/16-D (FEU) was concluded. According to the terms of this agreement, JSC "Motor Sich" received a loan of 100,000,000 (one hundred million) US dollars. On 28.12.2019 between company Skyrizon Aircraft Holdings Limited and Yarga Investments LTD, an agreement on assignment of the claim right (cessation) was concluded. According to the terms of the specified agreement, the claim right under the loan agreement dated 29.01.2016 No. 3104/16-D (FEU) passed to Yarga Investments LTD. At the same time, representatives of company Skyrizon Aircraft Holdings Limited did not conclude the agreement on assignment of the claim right (cessation) dated 28.12.2019. Thus, unidentified persons attempted to take possession by deception (fraud) of funds in particularly large amounts belonging to company Skyrizon Aircraft Holdings Limited.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№6

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	

detection from another source of circumstances that may indicate commission of criminal offense:	
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020 12:06:21
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 190 Part 4 (in force until 11.08.2023)
Brief statement of circumstances that may indicate commission of criminal offense: To the Investigation Department of the Main Department of the National Police in Odesa Region an application was received from a representative of company "S.A.H.L." regarding the fact of taking possession by deception of property, namely funds, in particularly large amounts (UEO 1878 dated 09.09.2020).	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№7

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020 12:09:54
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 358 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: To the Investigation Department of the Main Department of the National Police in Odesa Region an application was received from a representative of company "S.A.H.L." regarding the fact of forgery of documents on the basis of which unidentified persons by deception took possession of property, namely funds, in particularly large amount.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№8

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	23.11.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	

Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	23.11.2020 15:35:06
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 3; Art. 190 Part 4 (in force until 11.08.2023)
Brief statement of circumstances that may indicate commission of criminal offense: It has been established that unidentified persons, acting on behalf of company Skyrizen Aircraft Holding Limited and with the aim of fraudulently taking possession of the funds of the said company, forged an agreement on assignment of the right of claim dated 28.12.2019, according to which Skyrizen Aircraft Holding Limited allegedly assigned the right of claim in favor of company Yarga Investments LTD in the amount of 100 000 000 US dollars under the loan agreement dated 29.01.2016 No. 3104/16-D(FEU), concluded between Skyrizen Aircraft Holding Limited and JSC “Motor Sich” (UEO 8792 dated 23.11.2020)	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№9

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	03.12.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	03.12.2020 20:35:18
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 364 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: During the period from 15.07.1994 to the present time, officials and beneficial owners of JSC “Motor Sich”, acting out of mercenary motives, abusing their official position, by prior conspiracy with officials of the State Property Fund of Ukraine unlawfully received into free use and possess state property without payment of mandatory payments for use in the total amount of UAH 520 million, which caused grave consequences to legally protected state and public interests.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№10

Date of receipt of application, notification of commission of criminal offense or detection from another	20.08.2020

source of circumstances that may indicate commission of criminal offense:	
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	Vitiuk Vasyl Viktorovych
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.12.2020 16:02:22
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 1; Art. 113 (in force until 07.03.2022)
Brief statement of circumstances that may indicate commission of criminal offense: By the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv O.V. Mielieshak dated 04.11.2020, an authorized person (investigator) of the Security Service of Ukraine was obliged to enter into the Unified Register of Pre-trial Investigations information based on the application of V.V. Vitiuk dated 18.08.2020, according to which unidentified persons, through filing on 05.08.2020 an application to the Commercial Court of Zaporizhzhia Region on behalf of LLC “Asset Management Company and Pension Funds Administration “Aktiv Plus” (USREOU 32977421) in the interests of the corporate non-state pension fund “Ukrainian Pension Foundation” (USREOU 34001274), signed by Yu.V. Hordiichuk, are attempting to establish control over key assets of JSC “Motor Sich” (USREOU 14307794) and liquidate it as a strategic enterprise.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№11

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.01.2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.01.2021 17:29:19
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1 (in force until 01.07.2020)
Brief statement of circumstances that may indicate commission of criminal offense: In July – December 2019, officials of PJSC “Motor Sich” (USREOU 14307794) in the area of activity of the Chernihiv Customs of the SFS, in violation of the established procedure for the implementation of international transfers of goods subject to state export control, carried out the export of aviation engines VK-2500-03 (without installed purchased units) to the address of company “SIA AEROSERVICE” (Republic of Latvia).	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№12

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16.03.2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	17.03.2021 17:10:49
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 233 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: In the period from 1993 to 2015, officials of the State Property Fund of Ukraine, acting by prior conspiracy by a group of persons, carried out privatization of state property, namely the integrated property complex of SOE “Motor Sich”, by understating its value through determining it in a manner not provided for by law, namely unlawfully excluded from the total value of the integrated property complex of SOE “Motor Sich” property that was subject to privatization, did not conduct mandatory indexation of fixed assets of the privatization object, in large amounts, that is, for an amount that exceeds by a thousand and more times the tax-free minimum income of citizens.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№13

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	18.03.2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	18.03.2021 10:24:02
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: upon the fact that V.O. Boguslayev, honorary president of JSC “Motor Sich”, in 2017, acting in the interests of the Russian Federation, sold the controlling stake of shares of JSC “Motor Sich” to the Chinese company Skyrizon, thereby providing a foreign state with assistance in conducting subversive activity against Ukraine with the aim of causing damage to the defense capability of Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№14

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.06.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.06.2022 23:59:54
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: In 2022, citizens of Ukraine V.O. Boguslayev and N.B. Ulyanenko provide representatives of the Russian Federation with assistance in conducting subversive activity against Ukraine to the detriment of the defense capability and state security of Ukraine, under martial law.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№15

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.08.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16.08.2022 18:02:32
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Onto the territory of Ukraine to the address of Ukrainian enterprise JSC “Motor Sich” (USREOU 14307794) by enterprises of the aggressor state, the Ministry of Defense of the Republic of Belarus, as well as enterprises of the Republic of Belarus, which supports the Russian Federation in armed aggression against Ukraine through providing the armed forces of the aggressor state with unhindered access to its territory and military infrastructure facilities for conducting combat operations against Ukraine, special-purpose machines and mechanisms were imported for carrying out repair works on the basis of agreements that as of 15.08.2022 are not fulfilled, whereby the conduct of economic activity in cooperation with the aggressor state is actually ensured, paying taxes to the budget of the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№16

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.08.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16.08.2022 18:08:14
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Onto the territory of Ukraine to the address of Ukrainian enterprise and LLC “Vinnytsia Aviation Plant “VIAZ” (USREOU 37617817) by enterprises of the aggressor state, the Ministry of Defense of the Republic of Belarus, as well as enterprises of the Republic of Belarus, which supports the Russian Federation in armed aggression against Ukraine through providing the armed forces of the aggressor state with unhindered access to its territory and military infrastructure facilities for conducting combat operations against Ukraine, special-purpose machines and mechanisms were imported for carrying out repair works on the basis of agreements that as of 15.08.2022 are not fulfilled, whereby the conduct of economic activity in cooperation with the aggressor state is actually ensured, paying taxes to the budget of the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№17

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28.09.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28.09.2022 11:32:43
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Officials of JSC “Motor Sich” (USREOU 14307794), including those who also have citizenship of the aggressor state, upon order of a number of enterprises of the aggressor state and the Republic of Belarus, which in turn perform works and/or provide services for the ministry of defense of the russian federation, the federal security service of the russian federation and other military and law enforcement agencies of the aggressor state and the Republic of Belarus, carry out repair, service maintenance and provision with spare parts of aviation equipment, whereby transfer of material resources to armed or paramilitary formations of the aggressor state is carried out, as well as conduct of economic activity in cooperation with the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	

Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№18

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022 14:40:27
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev, in pursuance of an agreement with a representative of the aggressor state the RF, organized deliveries of commodity products – spare parts for capital repairs of engines TV3-117VM, AI-9V, AI-25TLK, which are used in military aviation of the RF, in the total amount of UAH 71 265 189.44.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№19

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022 14:43:02
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 111-2 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev in May 2022 agreed to a proposal from a representative of the aggressor state regarding the supply of goods – “aviation engines and spare parts “TV3-117VM series 02”, VK-2500, instruments “NR-3000” etc., which are used in military aviation of the RF.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№20

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022 16:52:32
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 114-1 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev obstructed the lawful activity of the AF of Ukraine and other military formations through creating obstacles in the implementation of the forced alienation of a helicopter that belonged by right of ownership to PJSC “Motor Sich” for the needs of the state under martial law, as well as the execution of the state defense order	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№21

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022 16:57:07
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 258-3 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: In particular, P.I. Kononenko, being an authorized person on matters of representation of commercial interests of JSC “Motor Sich” on the territory of the RF, with the complicity of V.O. Boguslayev, P.I. Zaruba, O.V. Dziuba, developed and used direct connections with representatives of the MIC of the RF, from December 2017, contrary to existing national prohibitions on movement of cargo across the contact line within Donetsk and Luhansk regions, ensured the supply of blades for aviation engines from the SD “Snizhne Machine-Building Plant of JSC “Motor Sich” (TOT), which was accompanied by payment of taxes in favor of the “DPR”, thereby carrying out organizational and other assistance to the activity of a terrorist organization	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№22

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.12.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.12.2022 14:20:24
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 209 Part 3
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev by prior conspiracy with O.V. Boguslayev, Yu.V. Kunaiev, P.I. Kononenko, with his son - A.P. Kononenko, in the period of time from 2014 to 2022 acquire, possess, use and dispose of property regarding which factual circumstances indicate its receipt by criminal means (in particular providing organizational and other assistance to the activity of a terrorist organization through providing funds to legal entities whose property is indirectly under the control of terrorists, as well as to legal entities and natural persons who act on behalf of or under the instruction of the said persons) including through conducting financial operations, performing transactions with such property, or transfer, change of form (transformation) of such property	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№23

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	27.02.2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	06.03.2023 14:37:46
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: By an unidentified official of PJSC “Motor Sich” from 2020 to 2022 intentional unlawful acts were committed regarding the export of a set of aviation units for engines VK-2500-03 without corresponding permits of the State Service of Export Control of Ukraine, that is, violation of the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	

Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№24

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20.03.2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28.03.2023 12:46:43
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: In 2018, official of JSC “Motor Sich” O.V. Dziuba exported to the United Arab Emirates and Serbia 6 aviation engines TV3-117VMA series 02, without corresponding permits of the State Service of Export Control of Ukraine, thereby violating the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№25

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	11.10.2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	19.10.2023 11:06:56
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: On 03.08.2022, officials of JSC “Motor Sich”, without obtaining from State Export Control the corresponding permit, carried out to the address of the foreign company “VIH Helicopters LTD” (Canada) export (under the customs regime EK 11 AA – re-export, namely: return export of goods that were previously imported into the customs territory of Ukraine) of two aviation engines TV3-117VMA series 02, and on 28.07.2021 and 17.10.2022 their medium and capital repairs, respectively, thereby violating the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№26

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.04.2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20.05.2024 11:14:06
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-2 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “MOTOR SICH”, bypassing the legislation of Ukraine, through disguising their actions under the guise of deliveries to the address of “IMACO COMMERCE LIMITED PARTNERSHIP”, “ASSTRA POLSKA sp. z.o.o”, JSC “Uzbekneftegaz”, carried out the supply of material resources – gas turbine drives AI-336-2-8 to representatives of the aggressor state – the russian federation to ensure the needs of its gas extraction industry, which is actually one of the main sources of financing Russia’s military aggression against Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№27

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	13.05.2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	JSC Motor Sich (Code 14307794)
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	30.05.2024 17:10:36
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 219 (in force until 01.07.2020)
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “Motor Sich”, who acted as a group of persons by prior conspiracy with persons who exercised effective control over the enterprise – V.O. Boguslayev, O.V. Boguslayev, as well as persons who without permission of the AMCU performed actions aimed at taking possession of the production assets of the enterprise in the interests of Beijing Skyrizon Aviatin Indastry Investments Co. Ltd and acted indirectly through offshore companies – Wang Jing, Du Tao, Li Fengjiu, Xu Changshun, Ren Jinglin, Liu Yangning, performed actions aimed at bringing the enterprise to bankruptcy, in particular through the formation of debt in the amount of over USD 100 million, as well as siphoning off in favor of V.O. Boguslayev, O.V. Boguslayev assets of the enterprise, in particular those received under a loan, thereby causing the enterprise property damage in particularly large amounts.	

Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

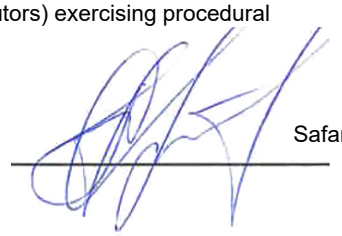
№28

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20.05.2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	30.05.2024 17:36:30
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 191 Part 5
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “Motor Sich”, who acted as a group of persons by prior conspiracy with persons who exercised effective control over the enterprise – V.O. Boguslayev, O.V. Boguslayev, through abuse of official position committed in their interests embezzlement of property of the enterprise, thereby causing it property damage in particularly large amounts.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

Pre-trial investigation body: Main Investigation Directorate of the SB of Ukraine

Full name of investigator (investigators)/inquirer exercising pre-trial investigation: Romashkin D.S., Kulachek A.A., Miroshnyk O.V., Hryhorieva A.A., Dryvynskyi A.P., Dunai D.O., Kravchenko O.L., Khrystoforov V.F., Khliebnikova O.M., Vorona V.O.

Full name of prosecutor (prosecutors) exercising procedural guidance: Safarian O.E., Chorna O.M., Trush S.A., Stotskyi M.V., Kaspruk D.I., Bukalo I.S., Tomchai R.V., Dolbeshchenkov D.O., Kisilevych I.P., Zhyla O.B., Yehzhov R.D., Harasym S.Y., Zhovnerchuk Ya.V.

Registrar's signature  Safarian O.E.

Department prosecutor

19.03.2025

Prosecution Service of Ukraine
OFFICE OF THE PROSECUTOR GENERAL
13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

_____ No. _____ To No. _____ dated _____

RESOLUTION
on changing the group of prosecutors

City of Kyiv «07» February 2025

First Deputy Prosecutor General Oleksiy Mykolayovych Khomenko, having examined the materials of criminal proceedings No. 22017000000000272,

ESTABLISHED:

The Main Investigation Directorate of the Security Service of Ukraine is conducting a pre-trial investigation in criminal proceedings No. 22017000000000272 dated 06.07.2017 under Part 1 of Art. 14, Art. 113, Part 2 of Art. 209, Part 3 of Art. 212, Part 1 of Art. 111, Part 3 of Art. 15, Part 4 of Art. 190, Part 4 of Art. 358, Part 2 of Art. 364, Part 1 of Art. 15, Art. 113, Part 1 of Art. 333, Part 2 of Art. 233, Part 2 of Art. 111, Part 4 of Art. 111-1, Part 2 of Art. 28, Part 4 of Art. 111-1, Part 2 of Art. 28, Part 1 of Art. 111-2, Part 1 of Art. 114-1, Part 2 of Art. 28, Part 1 of Art. 258-3, Part 3 of Art. 209, Part 1 of Art. 333, Part 2 of Art. 28, Art. 219, Part 2 of Art. 28, Part 5 of Art. 191 of the CC of Ukraine.

In connection with personnel changes in the Office of the Prosecutor General, the impossibility of the exercise of powers by prosecutors in the previous composition of the group, for the purpose of ensuring an effective pre-trial investigation, supervision thereof in the form of procedural guidance, it is necessary to change the group of prosecutors.

In view of the above, guided by Arts. 37, 110 of the CPC of Ukraine,

RESOLVED:

1. To change the group of prosecutors who will exercise supervision over the observance of laws in the form of procedural guidance of the pre-trial investigation in criminal proceedings No. 22017000000000272, designating it composed of:

- Head of the Directorate for Organization and Procedural Guidance of Pre-Trial Investigation and Support of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General **Kisilevych I.P.**, Deputy Head of this Directorate **Zhyla O.B.**, Head of the First Division of this Directorate **Dolbeshchenkov D.O.**, Deputy Head of this Division **Yegzhov R.D.**, prosecutors of this Division **Safaryan O.E.**, **Trush S.A.**, **Kaspruk D.I.**, **Bukalo I.S.**, **Chorna O.M.**, **Tomchay R.V.**, **Zhovnerchuk Ya.V.**, **Harasym S.Y.**;

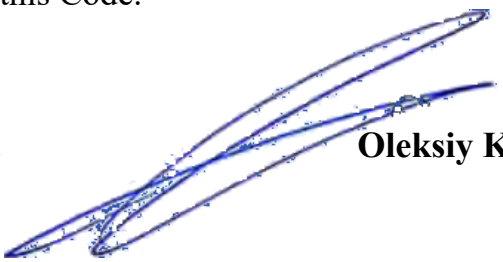
99

- prosecutor of the Second Division of the Directorate for Investment Protection and Introduction of Specialization of Prosecutors of the Department of Criminal Policy and Investment Protection of the Office of the Prosecutor General **Stotskyi M.V.**

2. As Senior of the group of prosecutors in criminal proceedings No. 22017000000000272 to designate the prosecutor of the First Division of the Directorate for Organization and Procedural Guidance of Pre-Trial Investigation and Support of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General **Safaryan O.E.**, who is entrusted with directing the actions of other prosecutors.

3. To enter the relevant information into the URPI.

The resolution is not subject to appeal during the pre-trial investigation, however, a complaint against it pursuant to Part 2 of Art. 303 of the CPC of Ukraine may be subject to examination during preparatory proceedings in court in accordance with the rules of Arts. 314 – 316 of this Code.

First Deputy Prosecutor General  **Oleksiy KHOMENKO**

RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

Previous version

People's Deputy of Ukraine (V convocation)

Boguslayev Viacheslav Oleksandrovych



FROM **25 MAY 2006** TO **23 NOVEMBER 2007**

Multi-mandate nationwide electoral district,
Party of Regions *(No. in the list - **5**)*

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions (during convocation)

- Head of the Subcommittee on Legislative Support of State Defense, Defense-Industrial Complex, Military and Military-Technical Cooperation of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense
- Member of the Parliamentary Faction of the Party of Regions in the Verkhovna Rada of Ukraine
- Member of the group on inter-parliamentary relations with the People's Democratic Republic of Algeria
- Member of the group on inter-parliamentary relations with the Arab Republic of Egypt
- Member of the group on inter-parliamentary relations with the Great Socialist People's Libyan Arab Jamahiriya
- Member of the group on inter-parliamentary relations with the State of Israel
- Member of the group on inter-parliamentary relations with the People's Republic of China
- Member of the group on inter-parliamentary relations with the United Mexican States
- Member of the group on inter-parliamentary relations with the United Arab Emirates
- Member of the group on inter-parliamentary relations with the Republic of South Africa
- Member of the group on inter-parliamentary relations with the Republic of Belarus
- Member of the group on inter-parliamentary relations with the Republic of India
- Member of the group on inter-parliamentary relations with the Republic of Iraq
- Member of the group on inter-parliamentary relations with the Republic of Iran
- Member of the group on inter-parliamentary relations with the Republic of Lebanon
- Member of the group on inter-parliamentary relations with the Russian Federation
- Member of the group on inter-parliamentary relations with Romania
- Member of the group on inter-parliamentary relations with the Syrian Arab Republic
- Member of the group on inter-parliamentary relations with the Socialist Republic of Vietnam
- Member of the group on inter-parliamentary relations with the Republic of Turkey
- Member of the group on inter-parliamentary relations with the Czech Republic

All positions during convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of employment	Open Joint-Stock Company Motor Sich, Chairman of the Board
Party affiliation (at the time of elections)	Party of Regions
Resides in	Sonyachne-2 village, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	✔ YES
Information at the time of election	In detail ▲

Activity

PREVIOUS VERSION

Voting

Registration

Transitions

Positions

Software and technical support – Computerized Systems Directorate

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RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

Previous version

People's Deputy of Ukraine (VI convocation)

Boguslayev Viacheslav Oleksandrovych



FROM 23 NOVEMBER 2007 TO 12 DECEMBER 2012

Multi-mandate nationwide electoral district,
Party of Regions *(No. in the list - **11**)*

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions (during convocation)

- Deputy Head of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense
- Member of the Parliamentary Faction of the Party of Regions in the Verkhovna Rada of Ukraine
- Member of the group on inter-parliamentary relations with the Democratic Socialist Republic of Sri Lanka
- Member of the group on inter-parliamentary relations with the People's Republic of China
- Member of the group on inter-parliamentary relations with the United Arab Emirates
- Member of the group on inter-parliamentary relations with the Republic of India
- Member of the group on inter-parliamentary relations with the Republic of Kazakhstan
- Member of the group on inter-parliamentary relations with the Russian Federation
- Member of the group on inter-parliamentary relations with the Federal Republic of Germany

All positions during convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of employment	Verkhovna Rada of Ukraine, People's Deputy of Ukraine V convocation
Party affiliation (at the time of elections)	Party of Regions
Resides in	Sonyachne village, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	NO
Deputy of previous convocation	YES (V convocation)
Information at the time of election	In detail

Activity

PREVIOUS VERSION

- Voting
- Registration
- Transitions
- Positions
- Speeches
- Deputy inquiries
- Legislative activity
- Declarations

Software and technical support – Computerized Systems Directorate

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RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

Previous version

People's Deputy of Ukraine (VII convocation)

Boguslayev Viacheslav Oleksandrovych



FROM 12 DECEMBER 2012 TO 27 NOVEMBER 2014

Electoral district No. **77**, Zaporizhzhia region

Committee: Committee of the Verkhovna Rada of Ukraine on Industrial and Investment Policy

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions during convocation

Position	Appointment date	Dismissal date
Deputy Head of the Committee of the Verkhovna Rada of Ukraine on Industrial and Investment Policy	25 December 2012	27 November 2014

Go to card

Activity

PREVIOUS VERSION

Voting

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Speeches

Deputy inquiries

Legislative activity

Declarations

Software and technical support – Computerized Systems Directorate

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People's Deputy of Ukraine (VIII convocation)

Boguslayev Viacheslav Oleksandrovych



FROM **27 NOVEMBER 2014** TO **29 AUGUST 2019**

Electoral district No. **77**, Zaporizhzhia region

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Group "Volya Narodu"

Positions (during convocation)

Member of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Member of the "Volya Narodu" Parliamentary Group

All positions during convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of employment	People's Deputy of Ukraine
Party affiliation (at the time of elections)	Non-partisan
Nominating entity	Self-nomination
Resides in	Sonyachne settlement, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	NO
Deputy of previous convocation	YES (V, VI, VII convocation)
Information at the time of election	In detail

Activity

PREVIOUS VERSION

Voting

Registration

Transitions

Positions

Speeches

Deputy inquiries

Legislative activity

Declarations

Software and technical support – Computerized Systems Directorate

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WHITE-COLLAR CRIME
DISPUTE RESOLUTION
SANCTIONS

Out. No. 20251209/1

To the Prosecutors in Criminal Proceeding No. 22017000000000272 –
Prosecutor of the Prosecutor General's Office Oleksandr Safaryan
13/15 Riznytska St., Kyiv, 01011

Defense Counsel: **Attorney Vladyslav Miftakhutdinov**
Entrance 13, 22 Rybalska St., Kyiv, 01011
Tel.: 097 327 02 69
E-mail: v.miftakhutdinov@vbpartners.ua

In the interests of: **Oleksandr Vyacheslavovych Boguslayev**

Criminal Proceeding
No. 22017000000000272

MOTION
on determination of investigative jurisdiction of criminal proceeding
No. 22017000000000272

(pursuant to Article 220, Part 2 of Article 218 of the CPC of Ukraine)

I, attorney Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; authority – Annexes 1, 2).

On 25 April 2025, a Notice of Suspicion was drawn up against my Client within criminal proceeding No. 22017000000000272 dated 06 July 2017 (hereinafter – the Criminal Proceeding; Annex 3).

The pre-trial investigation within the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine. Procedural guidance is carried out by prosecutors of the Prosecutor General's Office.

As of 07 February 2025, You were appointed senior prosecutor of the group of prosecutors within the Criminal Proceeding (Annex 4).

The defense has grounds to file a motion to change the investigative jurisdiction of the Criminal Proceeding, as:

(1) The Criminal Proceeding, in accordance with the provisions of the CPC, falls under the exclusive subject-matter investigative jurisdiction of NABU;

(2) The prosecutor has a procedural duty to determine the proper investigative jurisdiction of the Criminal Proceeding;

(3) The prosecutor must supervise compliance with legislative requirements within the criminal proceeding;

(4) Proper investigative jurisdiction of the proceeding is a guarantee of observance of the Client's right to due process of law provided for by Article 2 of the CPC.

The above is substantiated by the following.

1. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding by NABU

The pre-trial investigation of the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine.

In the indicated Criminal Proceeding, investigators of the Main Investigation Directorate of the Security Service of Ukraine drew up Notices of Suspicion regarding V.O. Boguslayev and O.V. Boguslayev.

On 28 April 2025, V.O. Boguslayev was notified of suspicion of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

On 25 April 2025, in the Criminal Proceeding, a Suspicion was drawn up regarding O.V. Boguslayev concerning a crime provided for by Part 3 of Article 209 of the CC.

According to the investigation's version:

(1) V.O. Boguslayev during 1994–2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued price as a result of failure to index the value of property during the privatization of the SE "Motor Sich".

(2) Subsequently, V.O. Boguslayev and O.V. Boguslayev allegedly legalized criminal proceeds, namely sold shares of JSC "Motor Sich" (which were acquired by criminal means) to representatives of the PRC through controlled non-resident companies.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006 – 29 August 2019 (Annexes 5–8).

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

This, in turn, indicates the investigative jurisdiction of such proceeding by NABU.

Thus, pursuant to paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for by **Articles 191, 206-2, 209, 210, 211, 354 (regarding employees of legal entities of public law), 364, 366-2, 366-3, 368, 368-5, 369, 369-2, 410 of the CC of Ukraine, if the criminal offense is committed by a People's Deputy of Ukraine.**

We note that the CPC of Ukraine **does not establish a requirement** that the special status of the alleged subject of the crime extend to the entire period of investigation of the proceeding.

That is, during the period of investigation, the person may not possess the corresponding status. For NABU's investigative jurisdiction, what is decisive is that the person possesses such special status at the time of committing the alleged offense.

In addition, the CPC of Ukraine does not establish that the alleged commission of the crime must be connected with the person having such special status (using it).

Therefore, **the Criminal Proceeding is subject to the investigative jurisdiction of NABU, since the criminal offense incriminated against V.O. Boguslayev – Part 5 of Article 191 of the CC, was allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine.**

In addition, such investigative jurisdiction of NABU in this case is exclusive (i.e. such that precludes investigation of the Proceeding by other bodies) in view of the following:

(1) pursuant to Part 5 of Article 36 of the CPC of Ukraine, **it is prohibited to entrust the conduct of pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of NABU to another pre-trial investigation body**, except in cases where objective circumstances exist that make the functioning of NABU or its conduct of pre-trial investigation impossible under martial law.

Such circumstance is absent in this Criminal Proceeding.

(2) Part 5 of Article 36 of the CPC of Ukraine establishes that **it is prohibited for pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine to be conducted by other pre-trial investigation bodies, except for NABU and the central apparatus of the SBI in accordance with their investigative jurisdiction.**

Considering the stated, **the Criminal Proceeding falls under the exclusive investigative jurisdiction of NABU detectives.**

Thus, an analysis of Part 5 of Article 36, Parts 2, 5 of Article 216 of the CPC of Ukraine indicates the absence of authority in the bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, according to Part 2 of Article 19 of the Constitution of Ukraine, state power bodies and their officials are obligated to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.

2. Regarding the prosecutor's duty to determine another investigative jurisdiction of the Criminal Proceeding.

Part 2 of Article 218 of the CPC of Ukraine regulates the procedure for actions of an investigator/prosecutor upon discovering that a criminal proceeding does not fall within the investigative jurisdiction of the investigation body.

In particular, the specified provision **establishes the duty of the prosecution to respond properly** to identified facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, according to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, **within ten days from the day such circumstances are established, is obligated to adopt a ruling on determining investigative jurisdiction.**

Therefore, the specified provision establishes:

(1) the prosecutor's duty to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the time limit within which the prosecutor must make a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified provision establishes precisely the duty of the prosecutor, in case of violation of investigative jurisdiction, to take actions aimed at determining proper investigative jurisdiction.

Within the Criminal Proceeding, the prosecutor is obligated to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine another investigative jurisdiction of the Criminal Proceeding within 10 days, as:

(1) The Criminal Proceeding constitutes the exclusive investigative jurisdiction of NABU (in connection with the circumstances stated in item 1 of the Motion);

(2) The Criminal Proceeding cannot be subject to the investigative jurisdiction of the Main Investigation Directorate of the Security Service of Ukraine.

On 07 February 2025, You were included in the group of prosecutors and designated senior prosecutor of the group of prosecutors.

The circumstances necessitating the change of investigative jurisdiction of the Proceeding arose on 25 April 2025 – at the moment of notice of suspicion under Part 5 of Article 191 of the CC to a special subject.

Therefore, it was from this date that such 10-day period for determining the investigative jurisdiction of the Criminal Proceeding to NABU began.

Pursuant to Part 1 of Article 220 of the CPC of Ukraine, a motion by the defense for the execution of any procedural actions must be considered by the prosecutor within a period not exceeding three days from the moment of submission and satisfied if relevant grounds exist.

Thus, this Motion contains requests for conducting procedural actions (determination of the investigative jurisdiction of the Criminal Proceeding) and must be considered by the prosecutor in accordance with the requirements of Article 220 of the CPC of Ukraine.

Considering the stated, guided by Articles 8, 9, 36, 216, 218, 220 of the CPC of Ukraine, –

REQUEST:

1. To comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 06 July 2017 to the National Anti-Corruption Bureau of Ukraine.
2. To inform attorney Vladyslav Miftakhutdinov about the results of the consideration of the Motion at the address: Entrance 13, 22 Rybalska St., Kyiv, 01011, and at the e-mail address: v.miftakhutdinov@vbpartners.ua.

Annexes:

1. Certified copy of the Certificate of the right to practice law.
2. Certified copy of the Power of Attorney / Order for provision of legal assistance.
3. Certified copy of the Extract from the Unified Register of Pre-Trial Investigations (ERDR).
4. Certified copy of the Resolution of the First Deputy Prosecutor General O.M. Khomenko on designating the group of prosecutors dated 07 February 2025.
5. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 25 May 2006 to 23 November 2007 (V convocation).
6. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 23 November 2007 to 12 December 2012 (VI convocation).

7. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 12 December 2012 to 27 November 2014 (VII convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 27 November 2014 to 29 August 2019 (VIII convocation).

09.12.2025

Defense Counsel **Vladyslav MIFTAKHUTDINOV**

Prosecution Service of Ukraine
OFFICE OF THE PROSECUTOR GENERAL
13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

12.12.2025 No. 10/1/1-4939-17 To No. _____ dated _____

To Vladyslav Serhiyovych Miftakhutdinov
22 Rybalska St., BC "Bashta 5",
Entrance 13, 1st Floor, Kyiv, 01011

The prosecutor, within the scope of authority, has considered Your motion dated 09.12.2025 No. 20251209/1 in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 dated 06.07.2017 on the determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

Following the results of consideration of the specified motion, I inform you of the refusal to satisfy it and send the corresponding ruling.

Annex: copy of the ruling on refusal to satisfy the motion, on 2 sheets.

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies

Oleksandr SAFARYAN

Офіс Генерального прокурора
12.12.2025 №10/1/1-117743ВИХ-25
10/1/1-4939-17

Prosecution Service of Ukraine
OFFICE OF THE PROSECUTOR GENERAL
13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

No. _____ To No. _____ dated _____

RULING
on refusal to satisfy the motion

City of Kyiv "12" December 2025

The prosecutor of the first division of the department for organization and procedural guidance of pre-trial investigation and maintenance of public prosecution in criminal proceedings of security bodies of the Department for supervision over compliance with laws by security bodies of the Prosecutor General's Office Safaryan O.E., having examined the materials of criminal proceeding No. 22017000000000272 dated 06.07.2017,

ESTABLISHED:

The Prosecutor General's Office received a motion dated 09.12.2025 No. 20251209/1 from attorney Vladyslav Miftakhutdinov in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 on the determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

In the course of its consideration, it was established that on 06.07.2017, investigators of the Main Investigation Directorate of the Security Service of Ukraine initiated a pre-trial investigation in criminal proceeding No. 22017000000000272 on the grounds of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of the security investigation bodies.

During the investigation, investigators of the security bodies revealed a number of other crimes committed both by officials of JSC "Motor-Sich" and by other persons, and prosecutors made decisions on joinder under twenty-seven episodes of criminal activity initiated under various parts of Articles 111, 111^{2}, 113, 114^{1}, 190, 191, 209, 212, 233, 258^{3}, 219, 333, 358, 364 of the CC of Ukraine.

Following the investigation of these criminal offenses, from 2021 to 2024 charges were brought against Volodymyr Pryadko under Article 367 of the CC of Ukraine, Petro Zaruba under Article 258^{3} of the CC of Ukraine, Petro Kononenko under Article 258^{3} of the CC of Ukraine, Vyacheslav Boguslayev under Articles 111^{1}, 111^{2}, 114^{1}, 258^{3} of the CC of Ukraine, and Oleh Dzyuba under Articles 111^{1}, 111^{2}, 258^{3} of the CC of Ukraine, with subsequent severance of the materials of pre-trial investigation regarding these persons and adoption of final decisions on submission to court.

By investigators of the Main Investigation Directorate of the Security Service of Ukraine, since 24.01.2024 the pre-trial investigation of the specified criminal proceeding is conducted as part of a joint investigation team (JIT) with the French Republic and the Principality of Monaco regarding the facts of legalization on the territory of the European Union of USD 650 million received by Oleksandr Boguslayev as a result of the sale of shares of JSC "Motor Sich" unlawfully obtained by Vyacheslav Boguslayev.

Based on the evidence obtained by the joint investigation team, on 28.04.2025 Vyacheslav Boguslayev was notified of suspicion of misappropriation of shares of JSC "Motor Sich" in especially large amounts (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from the unlawful

sale of these shares to citizens of the PRC by prior conspiracy with his son Oleksandr Boguslayev (Part 3 of Article 209 of the CC of Ukraine), who was notified of suspicion under Part 3 of Article 209 of the CC of Ukraine on the territory of the Principality of Monaco by members of the JIT on 30.04.2025.

The criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine were detected specifically during the investigation by investigators of security bodies of a number of criminal offenses within their investigative jurisdiction in criminal proceeding No. 22017000000000272.

Furthermore, in this same criminal proceeding, on 11.07.2019 the Prosecutor General had already made a decision to entrust the conduct of pre-trial investigation to investigators of the Main Investigation Directorate of the Security Service of Ukraine on the basis of Part 5 of Article 36 of the CPC of Ukraine due to its inefficiency.

Currently, pre-trial investigation is conducted not only regarding Vyacheslav Boguslayev and Oleksandr Boguslayev under Articles 191 and 209 of the CC of Ukraine, but also regarding the facts of commission of crimes provided for by various parts of Articles 111, 111[1], 111[2], 113, 114[1], 190, 191, 209, 212, 219, 233, 258[3], 333, 358, 364 of the CC of Ukraine.

Vyacheslav Boguslayev, at the time charges were brought against him under Articles 111[1], 111[2], 114[1], 258[3] of the CC of Ukraine and notification of suspicion under Articles 191, 209 of the CC of Ukraine, did not hold the status of a People's Deputy of Ukraine.

The completion of the commission of the criminal offense incriminated against Vyacheslav Boguslayev provided for by Article 191 of the CC of Ukraine, as well as the commission of the criminal offense provided for by Article 209 of the CC of Ukraine, occurred after JSC "Motor Sich" had completely left state ownership.

Therefore, the decision to entrust the conduct of pre-trial investigation in this criminal proceeding (which is made taking into account the provisions of the CPC of Ukraine on investigative jurisdiction) has already been made, and grounds for determining another investigative jurisdiction have not been established.

At the same time, the attorney in the motion requests to determine investigative jurisdiction in the criminal proceeding. Such a decision is made in the form of a ruling and does not relate to investigative or procedural actions, the right to file motions for the conduct of which is granted to the defense under the provisions of Article 220 of the CPC of Ukraine.

On the basis of the above, guided by the requirements of Articles 36, 110, 220 of the CPC of Ukraine,

RULED:

1. To refuse attorney Vladyslav Miftakhutdinov, acting in the interests of suspect Oleksandr Boguslayev in criminal proceeding No. 22017000000000272, the satisfaction of the motion dated 09.12.2025 No. 20251209/1 on determination of investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

2. To send a copy of the ruling to attorney Vladyslav Miftakhutdinov.

The ruling may be appealed during pre-trial investigation to the investigating judge in the manner provided for by Articles 303–306 of the CPC of Ukraine, within ten days from the day the person receives a copy of the ruling.

Prosecutor of the first division of the department for organization and procedural guidance of pre-trial investigation and maintenance of public prosecution in criminal proceedings of security bodies of the Department for supervision over compliance with laws by security bodies



Oleksandr SAFARYAN

[Translation of the postal label on the envelope]

Ukrposhta R 06705 773612 4
[Barcode]
E | Kyiv | 01011 Kyiv | L

From: OFFICE OF THE PROSECUTOR GENERAL
01011, Kyiv region, Kyiv district, Kyiv,
13/15 Riznytska St.

01011 Kyiv
22 Rybalska St., Entrance 13, Floor 1
To: Miftakhutdinov V. S., BC Bashta 5

Payment stamp impression:
Ukraine. Paid
Payment Contract No. 170125-38
dated 17.01.2025 [contract date]

[Barcode]